EXCLUSIVE INTERNATIONAL DISTRIBUTOR & SALES AGENCY AGREEMENT

Commercial Contract for Premium Vacuum Insulated Stainless Steel Drinkware

THIS EXCLUSIVE DISTRIBUTOR AND SALES AGENCY AGREEMENT (the "Agreement") is entered into and made effective as of the 1st day of January, 2026 (the "Effective Date"), by and between the following parties:

MANUFACTURER: ARCTIC THERMO TECHNOLOGIES INC.

A corporation organized under the laws of Delaware, USA, with registered offices at 100 Arctic Way, Suite 500, Wilmington, DE 19801, United States (hereinafter referred to as the "Manufacturer" or "Company").

DISTRIBUTOR: GLOBAL PACIFIC DISTRIBUTION CORP. LTD.

A corporation organized under the laws of the Kingdom of Thailand, with registered headquarters at 888 Sukhumvit Road, Ocean Tower II, 24th Floor, Bangkok 10110, Thailand (hereinafter referred to as the "Distributor" or "Agent").

RECITALS

WHEREAS, the Manufacturer designs, engineers, manufactures, and markets high-performance double-wall vacuum insulated stainless steel water bottles, thermal flasks, tumblers, and hydration accessories under the proprietary brand name "ARCTIC THERMO" (the "Products");

WHEREAS, the Distributor possesses established sales channels, marketing infrastructure, logistics networks, and commercial capabilities within the Territory defined herein;

WHEREAS, the Manufacturer desires to appoint the Distributor as its exclusive commercial distributor and sales agent within the Territory, and the Distributor accepts such appointment under the terms and conditions set forth below.

ARTICLE 1: APPOINTMENT & SCOPE OF EXCLUSIVITY

1.1 Appointment: The Manufacturer hereby appoints the Distributor, and the Distributor hereby accepts appointment, as the sole and exclusive distributor and sales representative for the Products listed in Schedule A within the geographical territory consisting of the Kingdom of Thailand and the Socialist Republic of Vietnam (the "Territory").

1.2 Exclusivity Undertaking: During the Term of this Agreement, the Manufacturer shall not directly or indirectly sell, ship, market, or license the Products to any other person, retailer, wholesaler, or entity within the Territory, nor authorize any third party to perform sales representation for the Products therein. All sales leads and commercial inquiries originating from or destined for the Territory received by the Manufacturer shall be forwarded immediately to the Distributor.

1.3 Channel Protection & Territorial Boundaries: The Distributor shall market and sell Products strictly within the assigned Territory. The Distributor shall not actively solicit orders, open sales offices, or establish warehouse facilities outside the Territory without express written authorization from the Manufacturer.

1.4 Independent Contractor Status: The legal relationship established between the Parties is strictly that of independent contracting business entities. Nothing in this Agreement shall be interpreted to create an employer-employee relationship, joint venture, legal partnership, or franchise between the Manufacturer and the Distributor.

ARTICLE 2: ORDERS, PRICING & COMMERCIAL TERMS

2.1 Wholesale Pricing Structure: The Wholesale Prices and Manufacturer's Suggested Retail Prices (MSRP) for the Products are detailed in Schedule A attached hereto. All wholesale prices are quoted in United States Dollars (USD) on an FOB (Free On Board - Shanghai/Ningbo Port, China) basis in accordance with Incoterms 2020.

2.2 Price Adjustments: The Manufacturer reserves the right to modify Product wholesale prices upon providing at least sixty (60) calendar days' written notice to the Distributor. Price increases shall not affect any binding Purchase Orders accepted by the Manufacturer prior to the date of notice. Price reductions shall take effect immediately for all unfulfilled orders.

2.3 Purchase Order Procedure: The Distributor shall issue formal written Purchase Orders ("POs") specifying SKU numbers, quantities, target delivery dates, and shipping instructions. No Purchase Order shall be binding until confirmed in writing by the Manufacturer within five (5) business days of receipt.

2.4 Payment Terms: Unless alternative credit facilities are approved pursuant to Section 2.5, payment terms for all orders shall be as follows:

- **Advance Deposit:** Thirty percent (30%) of total order value payable upon confirmation of Purchase Order.
- **Balance Settlement:** Seventy percent (70%) balance payable upon presentation of original shipping documents, Bill of Lading (B/L), and Commercial Invoice prior to vessel arrival at destination port.

2.5 Credit Facility: Following twelve (12) consecutive months of satisfactory performance, the Manufacturer may grant net credit terms (Net 60 Days) up to a pre-approved credit ceiling based on formal financial evaluation.

ARTICLE 3: MINIMUM SALES TARGETS & COMMISSIONS

3.1 Annual Sales Commitments: To maintain territorial exclusivity, the Distributor commits to purchasing minimum net product volume ("Minimum Annual Target") as follows:

- **Contract Year 1:** USD $500,000 (Five Hundred Thousand United States Dollars)
- **Contract Year 2:** USD $750,000 (Seven Hundred Fifty Thousand United States Dollars)
- **Contract Year 3:** USD $1,000,000 (One Million United States Dollars)

3.2 Shortfall Remedies: If the Distributor fails to achieve the Minimum Annual Target in any Contract Year, the Manufacturer shall grant a ninety (90) day cure period. If the shortfall is not satisfied, the Manufacturer may, at its option, either convert the distribution rights from exclusive to non-exclusive or terminate the Agreement pursuant to Article 8.

3.3 Direct Corporate Sales Commissions: For enterprise accounts, corporate custom-branding contracts, or government deals negotiated directly by the Agent where billing is handled directly by the Manufacturer, the Manufacturer shall pay the Agent a sales agency commission of 8% of Net Invoice Value within 30 days of full payment receipt.

ARTICLE 4: SHIPPING, RISK & DELIVERY

4.1 Ocean & Air Freight: All shipments are delivered FOB Port of Origin. The Distributor is solely responsible for contracting ocean/air freight carriers, marine cargo insurance, import customs clearance, import tariffs, excise taxes, and local transportation within the Territory.

4.2 Transfer of Risk & Title: Risk of loss or damage to Products passes from the Manufacturer to the Distributor upon delivery over the vessel rail at the port of loading. Title to Products passes to the Distributor upon full 100% payment receipt for the applicable shipment by the Manufacturer.

4.3 Lead Times & Delays: Standard manufacturing production lead time is forty-five (45) calendar days from receipt of deposit. The Manufacturer shall make reasonable efforts to adhere to delivery schedules but shall not be held liable for shipment delays resulting from global shipping port congestion, customs holds, or events of Force Majeure.

ARTICLE 5: PRODUCT QUALITY, WARRANTY & CLAIMS

5.1 Five-Year Vacuum Integrity Warranty: The Manufacturer warrants that all insulated drinkware shall remain free from manufacturing defects in materials and craftsmanship, and guarantees double-wall vacuum thermal insulation retention for five (5) years from the retail consumer purchase date. This warranty excludes standard surface wear, cosmetic scratching, paint chipping, dropping damage, or commercial misuse.

5.2 Inspection & Defect Reporting: The Distributor shall inspect all incoming containers within fourteen (14) days of arrival at destination port. Claims for shipping damage or quantity discrepancies must be submitted in writing with photos within 14 days. Hidden manufacturing or vacuum performance defects may be claimed within sixty (60) days of discovery.

5.3 Defect Allowance & Credit: The Manufacturer provides a 1% free-of-charge spare parts and replacement allowance on all container load orders. Verified defective units exceeding this threshold shall be replaced in the next ocean order or credited via Commercial Credit Note.

ARTICLE 6: INTELLECTUAL PROPERTY & BRAND PROTECTION

6.1 IP Ownership: All trademarks, brand logos, patents, thermal tech designs, packaging graphics, and copyrighted assets under "ARCTIC THERMO" remain the sole exclusive property of the Manufacturer. The Distributor receives a revocable, non-transferable, royalty-free license to use brand assets solely for marketing Products within the Territory during the Term.

6.2 Brand Integrity & Anti-Counterfeiting: The Distributor shall not register any trademark, domain name, or business entity containing "ARCTIC THERMO" or confusingly similar terms. The Distributor agrees to cooperate in identifying and taking enforcement actions against counterfeit goods in the Territory.

ARTICLE 7: MARKETING COMMITMENTS & COMPLIANCE

7.1 Local Marketing Spend: The Distributor covenants to allocate a minimum of three percent (3%) of its annual gross Product sales revenue toward marketing, digital advertising, trade show exhibitions, and local promotional campaigns within the Territory.

7.2 Co-Op Marketing Program: The Manufacturer may co-fund up to 50% of approved major marketing activations, seasonal campaigns, or key retail placement fees, subject to prior written budget approval.

7.3 Regulatory Certifications: The Distributor shall ensure all Products distributed in the Territory comply with local food contact regulations, safety labeling, and Thai/Vietnamese language consumer packaging requirements. The Manufacturer shall supply US FDA, LFGB, and BPA-Free test certificates.

ARTICLE 8: TERM & TERMINATION

8.1 Term: This Agreement commences on January 1, 2026, and remains in effect for an initial period of three (3) years through December 31, 2028 ("Initial Term"). It shall automatically renew for successive two (2) year terms provided minimum targets are achieved.

8.2 Termination for Cause: Either Party may terminate this Agreement immediately if the other Party: (a) commits a material breach and fails to cure such breach within 30 days of written notice; (b) enters insolvency, liquidation, or bankruptcy; or (c) engages in fraudulent or unlawful activities damaging the brand's reputation.

8.3 Post-Termination Obligations: Upon termination, the Distributor shall immediately cease using all Manufacturer trademarks and promotional materials. Unpaid invoices become due immediately. The Manufacturer reserves the option to repurchase resalable stock at 90% of landed cost.

ARTICLE 9: NON-COMPETE & GOVERNING LAW

9.1 Non-Competition: During the Term and for twelve (12) months thereafter, the Distributor shall not manufacture, distribute, or market directly competing stainless steel insulated bottle lines within the Territory.

9.2 Governing Law & Arbitration: This Agreement shall be governed by the laws of the State of Delaware, USA. Any dispute arising out of this Agreement shall be finally settled by arbitration under the Rules of the Singapore International Arbitration Centre (SIAC) in Singapore in the English language.

SCHEDULE A: AUTHORIZED PRODUCT CATALOG (40 ITEMS SUMMARY)

The following representative 20 Product SKUs (from the complete 40-item master schedule) are authorized under this Exclusive Agreement. All pricing is FOB Port of Origin in USD.

NO.	SKU CODE	PRODUCT DESCRIPTION	CAPACITY	MSRP ($)	WHOLESALE ($)
01	ATH-HYD-500-001	HydroPeak Standard Loop Cap	500 ml	$30.99	$13.95
02	ATH-HYD-750-002	HydroPeak Wide Straw Lid	750 ml	$33.99	$15.30
03	ATH-HYD-1000-003	HydroPeak Flex Handle Chug	1000 ml	$36.99	$16.65
04	ATH-HYD-1200-004	HydroPeak Flip Top Sport	1200 ml	$39.39	$17.73
05	ATH-HYD-1500-005	HydroPeak MagTap Cap	1500 ml	$42.99	$19.35
06	ATH-TIT-750-006	TitanTough Paracord Handle	750 ml	$43.99	$18.48
07	ATH-TIT-1000-007	TitanTough Steel Cap	1000 ml	$46.99	$19.74
08	ATH-TIT-1500-008	TitanTough Dual-Opening Lid	1500 ml	$52.99	$22.26
09	ATH-TIT-2000-009	TitanTough Bumper Base Guard	2000 ml	$58.99	$24.78
10	ATH-SLI-350-010	SlimFit Daily Sleek Matte	350 ml	$24.19	$11.61
11	ATH-SLI-500-011	SlimFit Daily Pastel Soft-Touch	500 ml	$25.99	$12.48
12	ATH-SLI-600-012	SlimFit Daily Metallic Gradient	600 ml	$27.19	$13.05
13	ATH-APE-475-014	Apex Travel Tumbler 40oz Handle	475 ml	$35.69	$16.06
14	ATH-APE-600-015	Apex Travel Tumbler Cup Fit 30oz	600 ml	$37.19	$16.74
15	ATH-KID-350-018	Kids Adventure Straw & Boot	350 ml	$23.19	$11.60
16	ATH-INF-600-021	Infuse & Chill Fruit Basket	600 ml	$35.19	$15.84
17	ATH-COM-350-024	Commuter Mug One-Touch Lock	350 ml	$26.19	$12.05
18	ATH-EXT-1900-027	Extreme Growler Jug 1.9L	1900 ml	$72.79	$29.12
19	ATH-EXT-3800-029	Extreme Growler Pitcher 1 Gallon	3800 ml	$95.59	$38.24
20	ATH-ACC-LID-031	Replacement Straw Lid Assembly	Universal	$6.99	$2.80

* Note: Items 21 to 40 are listed in full in the accompanying digital product catalog master sheet.

EXECUTION & SIGNATURES

FOR MANUFACTURER:
ARCTIC THERMO TECHNOLOGIES INC.

By: Johnathan Miller
Title: Chief Executive Officer & President
Date: January 1, 2026

FOR DISTRIBUTOR:
GLOBAL PACIFIC DISTRIBUTION CORP. LTD.

By: Somchai Prasertwit
Title: Managing Director & Regional VP
Date: January 1, 2026